

On August 19, 2025, Petitioner Silvia Marison Ceja, guardian *ad litem* for Minor, filed the Petition through counsel Robert Buzzard, Esq., to compromise the claim that Minor had against Defendants Ellen and Pacifico Palacay related to an accident that occurred on June 20, 2021 at Contra Loma Regional Park, Antich, CA. In that accident, Minor sustained injuries to the back of his head after he was struck by a bicycle being driven by the one of the defendants during a bicycle-pedestrian accident. Minor has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$30,000, of which \$16,970.52 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$13,029.48 represents a negotiated deduction from the settlement used to satisfy liens for medical expenses and to pay for attorney's fees incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on August 19, 2025. No appearance is required at the hearing on December 3, 2025.

Discovery Law & Motion

12. 9:01 AM CASE NUMBER: C24-01736

CASE NAME: MELINDA HALL VS. FCA US LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: HALL, MELINDA OLAIA

TENTATIVE RULING:

Summary

Plaintiff Melinda Olaia Hall's ("Plaintiff") Motion to Compel Further Responses to Request for Production of Documents, Set one, from Defendant FCA LLC ("Defendant" or "FCA") is **granted**.

Background

In this case, Plaintiff alleges that the 2022 Jeep Wrangler vehicle she purchased, which was manufactured and distributed by Defendant, suffers from widespread defects and that Defendant has been unable to repair the vehicle within a reasonable number of attempts. Plaintiff further alleges that Defendant knew that the vehicle suffered from the prevalent defects, but nevertheless refused to repurchase the vehicle before the case was filed—a willful violation of the Song-Beverly Consumer Warranty Act ("Song-Beverly Act").

On July 2, 2025, Plaintiff filed her Motion to Compel Further Responses to Request for Production of Documents, Set One, from Defendant. The Motion was supported by a Notice, Memorandum of Points and Authorities, Declarations of Counsel William Vollbrecht, and a separate statement. The

Requests seek the following general category of documents to FCA's internal investigation and analysis of the Defects plaguing Plaintiff's vehicle and establishing that Defendant previously knew of such Defects but nevertheless refused to repurchase the vehicle. Specifically, Plaintiff seeks further responses to Nos. 16-21, without objections.

This Motion is made pursuant to California Code of Civil Procedure § 2031.310, on the grounds that Defendant has failed to provide adequate responses to Plaintiff's Requests, which seek documents directly relevant to Plaintiff's claims under the Song-Beverly Consumer Warranty Act.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine (9) court days before the hearing is November 18, 2025. Defendant filed and served its opposition and separate statement on November 20, 2025. The opposition is two days late and the Court finds that no timely opposition was filed. Furthermore, no declaration accompanies Defendant's late filed opposition declaring facts that support good cause for Counsel Lindsey Le's unexplained failure to file the opposition timely.

Analyses

Late Opposition Stricken

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) Where responding Counsel makes no attempt to seek leave to file their opposition late, and makes no attempt to demonstrate good cause for having failed to adhere to the applicable deadline, the late opposition may be rejected and stricken. *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held that the responding party "provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them." Here, FCA's counsel, Clark Hill LLP, fails to seek leave to file late papers and does not even attempt to show any cause for the late filing of its opposition. Accordingly, the Court strikes the late opposition.

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, supra, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information

sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Attorney Client or Work Product Privilege Doctrines

If a responding party seeks to assert the Attorney Client Privilege or Work Product Doctrine Privilege, it shall provide a privilege log specifying in detail each document being withheld, the date of the document, the author, and what privilege applies. (Cal. Code of Civ. Proc. § 2031.240(c)(1).

In exercising its discretion in ruling on discovery motions, the trial court relies on the Civil Discovery Act and the legislative purpose of avoiding surprise and preventing fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in discovery practice in California has been in place for over sixty years. The California Supreme Court in the seminal case of *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376,

remain applicable today. “That is, the Legislature intended to take the “game” element out of trial preparation while yet retaining the adversary nature of the trial itself. One of the principal purposes of discovery was to do away “with the sporting theory of litigation—namely, surprise at the trial.” *Chronicle Pub. Co. v. Superior Court*, 54 Cal.2d 548, 561. See also page 572 of the same opinion wherein we adopted from *United States v. Proctor & Gamble Co.*, 356 U.S. 677, the phrase that discovery tends to “make a trial less a game of blindman’s buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.”

After considering the moving papers, including the declarations submitted to the Court, the arguments of Counsel, and after applying the relevant statutory and decisional authorities, the Court makes the following findings and orders.

Ruling

Plaintiff’s Motion to Compel further Responses to Request for Production of Documents, Set One, is **granted**. Defendant FCA US LLC is ordered to produce, within 15 calendar days of this order, further response to Plaintiff’s Request for Production of Documents, Set One Nos. 16-21 and the all documents corresponding to these responses. FCA’s objections are stricken. The Court will execute the proposed order lodged by Plaintiff with the Court on July 2, 2025.

13. 9:01 AM CASE NUMBER: C24-02486

CASE NAME: TODD SARAN VS. ANDRES BERGERO

***HEARING ON MOTION FOR DISCOVERY QUASH, OR, IN THE ALTERNATIVE, FOR A PROTECTIVE ORDER RE: DEFENDANT’S SUBPOENA FOR PRIVATE EMPLOYEE RECORDS**

FILED BY: SARAN, TODD

TENTATIVE RULING:

Summary

Plaintiff Todd Saran (“Plaintiff”) filed a Motion to Quash or, in the alternative, Motion for Protective Order re Defendants Bank of Montreal and Bank of the West’s (“Defendants”) Subpoena for Private Employment Records is **denied** as set forth herein.

Background

In this case, Plaintiff alleges causes of action for whistleblower retaliation and wrongful termination suit. Plaintiff claims that the Defendants systematically stole money from its customers, by charging a higher transaction rate than the rate quoted. Plaintiff Saran discovered this fact and persistently reported the Defendants’ misconduct. The Defendants fired Todd Saran shortly thereafter and in retaliation for his good faith whistle-blower conduct.

On May 14, 2025, Defendants served notice of a J.P. Morgan Chase subpoena on Plaintiff. Plaintiff was not informed what date Chase was served with the subpoena. Plaintiff claims that “The subpoena seeks every shred of paper whatsoever relating to Plaintiff, from January 1, 2019 to the present.” For reference, Plaintiff was not even employed by Defendants until more than two years later, in April 2022. Defendants have made no attempt to limit and tailor the subpoena to a directly relevant time